

Post Oak Preserve

GOPHER TORTOISE RELOCATION AGREEMENT

Project Name

THIS GOPHER TORTOISE RELOCATION AGREEMENT (hereinafter referred to as the “Agreement”) is made and entered into this _____ day of _____, 2024, (hereinafter referred to as the “Effective Date”) by and between (_____), (hereinafter referred to as “Buyer”) and Post Oak Partners, LLC., a Florida limited liability company, (hereinafter referred to as “Post Oak”). Partners and Buyer may herein individually be referred to as a “Party” and collectively be referred to as the “Parties.”

WITNESSETH

FOR AND IN CONSIDERATION of the mutual agreements and covenants contained herein, and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged by the Parties, the Parties agree as follows:

1. **GOPHER TORTOISES.** The term “**Gopher Tortoise(s)**” shall refer herein to all individuals of the species *Gopherus polyphemus*, a species listed as “State-designated Threatened” by Florida Fish and Wildlife Conservation Commission (hereinafter referred to as “FWC”) and protected by Florida law, that have been captured on specified Donor Site.

2. **PREMISE. As a result of its development of the Buyer’s specified Donor Site, defined below, Buyer needs to relocate up to _____** Gopher Tortoises that will be captured on the Buyer’s specified Donor Site. Post Oak currently owns Recipient Site, defined below, approved to receive Gopher Tortoises. The Parties desire to enter into a contractual relationship, pursuant to the terms hereof, in which Buyer shall compensate Post Oak for accepting onto its Recipient Site Gopher Tortoises relocated from the Buyer’s specified Donor Site.

3. **TERM.** The term of this Agreement shall begin on the Effective Date and expire one year later (hereinafter referred to as the “**Term**”). The last day of the Term shall be _____, 202____, referred to herein as the “**Expiration Date.**” If this Agreement is terminated prior to the Expiration Date under the provisions hereof, the date of termination shall be referred to as the “**Termination Date.**”

4. **PER GT RATE.** The term “**Per GT Rate**” shall be six thousand dollars (\$5,750.00) for the purpose of this Agreement.

5. **TOTAL ESTIMATED PAYMENT. The term “Total Estimated Payment” shall be defined as _____**, which was determined by multiplying the number of Gopher Tortoises stated above in Paragraph 2 by the Per GT Rate.

6. **RECIPIENT SITE(S); DONOR SITE(S).**

a. **Recipient Site(s).** The term “**Recipient Site**” shall herein refer to lands owned by

Post Oak that are approved by FWC to accept Gopher Tortoises that have been captured on and relocated from Donor Site(s), as defined below, under the terms of this Agreement.

b. **Donor Site(s).** The term “**Donor Site**” shall herein refers to the specific development or project site that is approved by FWC for the number of Gopher Tortoises stated above in Paragraph 2 to be captured on and relocated from under the terms of this Agreement.

c. **Compliance.** Post Oak shall be solely responsible for obtaining and complying with any and all permits necessary for Post Oak to accept Gopher Tortoises under the terms of this Agreement. Buyer shall be solely responsible for obtaining and complying with any and all permits necessary for Buyer to deliver Gopher Tortoises to Post Oak under the terms of this Agreement. Neither Party shall be responsible for the other Party’s compliance under the other Party’s respective permit(s) or for the other Party’s failure to obtain a required permit.

d. **Information.** Each Party shall timely provide reasonably available information to the other Party upon request of the other Party if the requesting Party needs said information to obtain or maintain or comply under any permit necessary to fulfill the obligations of either Party hereunder. However, full payment from Buyer to Post Oak for all Gopher Tortoises from Donor Site(s) accepted onto Recipient Site(s) will be required before Post Oak will release final after-action reporting information to Buyer or FWC.

7. **CAPACITY.** Post Oak shall ensure the availability of Recipient Site(s) with FWC-permitted capacity sufficient to accommodate the number of Gopher Tortoises stated above in Paragraph 2 from Donor Site(s). Payment of the Initial Payment, as provided in Paragraph 8.b. of this Agreement, is made by Buyer to reserve capacity sufficient to the number of Gopher Tortoises stated above in Paragraph 2 delivered by Buyer to Recipient Site(s) under the terms of this Agreement. A draft of the Reservation Letter for the Post Oak Recipient Site(s) in which the capacity is reserved is attached hereto and incorporated herein as **Exhibit A** and will be issued pursuant to Paragraph 8.b., below, upon receipt and clearance of the Initial Payment.

8. **PAYMENT.** Buyer shall be obligated to pay Post Oak in accordance with the following terms:

a. **United States Dollars; Payment.** All monetary amounts indicated in this Agreement are in United States Dollars. Total Estimated Payment compensation required under this Agreement shall be paid by Buyer prior to or within ten (10) days of issuance of invoice for the remaining final Payment balance. All payments shall be made either by wire transfer or check payable to Post Oak Partners, LLC.

b. **Compensation.** As consideration for Post Oak accepting Gopher Tortoises, Buyer shall pay **six thousand dollars (\$5,750.00)** per Gopher Tortoise delivered by Buyer and accepted by Post Oak under the terms of this Agreement (hereinafter referred to as the “**Per GT Rate**”). The total amount required to be paid by Buyer shall be determined by multiplying the Per GT Rate by the number of Gopher Tortoises accepted by Post Oak. Buyer shall pay Post Oak for each Gopher Tortoise accepted by Post Oak onto Recipient Site(s), within 10 days of issuance of an invoice. Post Oak will send an invoice to Buyer for Gopher Tortoises accepted onto Recipient Site(s). This Paragraph shall survive the Termination Date or Expiration Date, whichever should occur first.

c. **Additional Fees.** Buyer shall pay Post Oak \$3,000 for each Juvenile Gopher Tortoise accepted by Post Oak (“Additional Fees”). A Juvenile Gopher Tortoise shall be defined as having a carapace length of 129mm or less, but more than 60mm. Additional Fees are due within 10 days of acceptance of the Juvenile Gopher Tortoise by Post Oak. Additional Fees are not included in the Total Estimate Payment and therefore are not included in the Initial Fee. Thus, Additional Fees must be paid to Post Oak in addition to the Initial Fee and any compensation described in Paragraph 8(c), above.

9. DELIVERY AND ACCEPTANCE. Upon execution of this Agreement, and after Buyer has paid the Initial Payment to Post Oak, Post Oak shall issue a Reservation Letter committing to accept the number of Gopher Tortoises stated in Paragraph 2. After Post Oak has issued a Reservation Letter, Buyer may begin coordinating the relocation of Gopher Tortoises from its Donor Site(s) to Post Oaks’ Recipient Site(s) and Post Oak shall begin accepting said Gopher Tortoises at its Recipient Sites, subject to the conditions of their respective permits, upon the following terms:

a. **Delivery and Acceptance Protocol.** The Parties hereby agree to the terms of the Delivery and Acceptance Protocol, attached hereto and incorporated herein as **Exhibit B** (hereinafter referred to as the “**Protocol**”). The Protocol may be amended from time to time if both Parties agree, but neither Party is bound to do so, except in the event of changes required to maintain compliance with FWC regulations or FWC-issued permits. Any amendments to the Protocol shall be in writing and shall be attached to and incorporated into a written amendment to this Agreement that is executed by authorized representatives of both Parties.

b. **Delivery.** Buyer shall deliver the Gopher Tortoises to Post Oak, in the manner described by the Protocol and required by any applicable regulations. Buyer shall be responsible for all Gopher Tortoise relocation activities described in the Protocol, through and including coordinating with the Recipient Site’s agent to confirm transfer of Gopher Tortoise(s). Buyer

shall be responsible for the health, safety, and welfare of the Gopher Tortoise(s) it delivers from its Donor Site(s) to Recipient Site(s) under the terms of this Agreement, in accordance with the standards required by the FWC and the Protocol, until such time as the Gopher Tortoises are accepted to the Recipient Site by Post Oak's agent. Post Oak shall have no responsibility for relocation activities or for the health, safety, and welfare of Gopher Tortoise(s) until Post Oak's agent has accepted said Gopher Tortoises at its Recipient Site(s) by manner of a signed acknowledgement.

c. **Acceptance.** Post Oak shall accept Gopher Tortoise(s) delivered by Buyer in the manner described by the Protocol. Post Oak shall be responsible for the health, safety, and welfare of Gopher Tortoise(s) relocated to the Recipient Site, in accordance with the standard required by FWC and the Protocol, after Post Oak accepts delivery of Gopher Tortoise(s) from Buyer. Buyer shall have no responsibility for Gopher Tortoise(s) after they have been accepted by Post Oak's agent under the terms of this Agreement. Post Oak shall not limit the number of Gopher Tortoises Buyer may deliver under the terms of this Agreement up to the number of Gopher Tortoises stated above in Paragraph 2. However, if Buyer wishes to deliver more than the number of Gopher Tortoises stated above in Paragraph 2, Buyer may pursue an amendment to this Agreement which will require Buyer to amend their current FWC relocation permit and provide a signed copy of the amended permit to Post Oak. Post Oak has no obligation under this Agreement to accept more than the number of Gopher Tortoises stated above in Paragraph 2.

d. **Delivery and Acceptance of Juveniles and Eggs.** Buyer may deliver and Post Oak shall accept Juvenile Gopher Tortoises (Gopher Tortoise maintaining a carapace length of less than 130 mm) and Gopher Tortoise eggs obtained during Buyer's relocation activities so long as Post Oaks' acceptance of juvenile Gopher Tortoises and Gopher Tortoise eggs does not reduce Post Oaks' available capacity to accept Gopher Tortoises. Delivery and acceptance of juveniles and eggs shall be made in accordance with the terms of the Protocol. Juveniles and eggs shall only be delivered in conjunction with the delivery of mature Gopher Tortoises.

e. **Deliverables - Transfer of Data for After-action Report.** Post Oak will provide the Gopher Tortoise biological data (ID number, age, sex, length, weight, etc.), required for the Donor Site permit after-action report, to the Buyer or their agent/consultant once Post Oak has received full payment as described in Paragraph 8.

f. **Closure of Donor Site Permit.** Buyer's agent/consultant shall close out the Donor Site FWC permit, voiding the remaining unused reservations, within 30 days of completion of the relocation activities at the Donor Site. Unwillingness to do so will reduce the Buyer's, and their Agent/Consultant's, preferential treatment with Post Oak and future recipient site reservations.

10. NO PROPERTY RIGHTS. Nothing in this Agreement shall give Buyer any interest in or rights to lands owned or controlled by Post Oak. Buyer shall not have the right to access, for inspection or otherwise, any Recipient Site(s) or other Post Oak lands by virtue of this Agreement. Nothing in this Agreement shall give Post Oak any interest in or rights to lands owned or controlled by Buyer. Post Oak shall not have the right to access, for inspection or otherwise, any Donor Site(s) or other Buyer lands by virtue of this Agreement.

11. DISPUTE RESOLUTION; DEFAULT. As a precondition to exercising any rights or remedies as a result of a Party's Default, as defined below, the Parties will follow the following dispute resolution process:

- a. **Default.** The term “**Default**” shall herein refer to either:
 - i. Except as otherwise indicated in the terms of this Agreement, Post Oak's failure or refusal to accept Gopher Tortoises as required under the terms of this Agreement; or
 - ii. Buyer's failure or refusal to pay the Initial Payment or any amounts owed to Post Oak by Buyer as provided by this Agreement.
- b. **Defaulting Party/Claiming Party.** The term “**Defaulting Party**” shall herein refer to the Party that has allegedly committed a Default. The term “**Claiming Party**” shall herein refer to the Party that is alleging that the other Party has committed a Default.
- c. **Notice.** Upon an alleged Default, the Claiming Party shall send notice (hereinafter referred to as “**Default Notice**”) to the alleged Defaulting Party in accordance with Paragraph 20 of this Agreement and indicating in said Default Notice all facts and information necessary for the alleged Defaulting Party to assess the alleged Default.
- d. **Instituting Legal Proceedings.** If the alleged Default indicated in the Default Notice is not resolved within thirty (30) days of delivery of the Default Notice to Defaulting Party, then either Party may initiate legal proceedings regarding the alleged Default indicated in the Default Notice.

12. DAMAGES. Each Party waives all claims and damages, and covenants not to sue the other Party, for (including and without limitation) additional, consequential, continuing, statutory, exemplary or punitive, future, incidental, special, or prospective damages, including, but not limited to, lost profits, and any damages in excess of the amounts specifically described in this Paragraph 12. The remedies described in this Paragraph 12 have been agreed to by the Parties as a fair calculation of each Party's actual compensatory damages. Said remedy has not been established to penalize a Party for defaulting under this Agreement. The sole and exclusive remedy for a Default of the terms of this Agreement are as follows:

- a. **Post Oak as Defaulting Party.** If Post Oak is the Defaulting Party, it shall have thirty (30) days from the date the Default Notice was provided by Buyer, to cure the Default. If the Default is uncured, Buyer shall be entitled to either a refund of the Initial Payment less any monies due (invoiced or yet to be invoiced). Post Oak shall make said payment to Buyer within ninety (90) days of the Termination Date of this Agreement.
- b. **Buyer as Defaulting Party.** If Buyer is the Defaulting Party, Post Oak shall be entitled to an amount equal to the number of Gopher Tortoises yet to be paid for under this Agreement multiplied by the Per GT Rate. If Buyer is the Defaulting Party, Buyer shall also work diligently with Post Oak and FWC to close out the Donor Site FWC permit, void and close any remaining reservations, and remove any encumbrance on Post Oaks' Lands caused by the

Reservation Letter. Time is of the essence.

13. TERMINATION.

a. **Termination for Cause.** Either Party may terminate this Agreement, without penalty, and without notice, if: 1) the other Party has been adjudicated in Default by a Court of competent jurisdiction; or, if 2) the Parties enter into a settlement where the Parties jointly agree to terminate the Agreement (hereinafter referred to as “**Termination for Cause**”). Either Party may waive its right to Termination for Cause; however, the non-defaulting Party is not entitled to any remedies or damages, as described in Paragraph 12 above, whether through formal adjudication or through negotiated settlement, unless and until Termination for Cause has occurred. A waiver of a Party’s right to terminate will not constitute a continuing waiver.

b. **Termination for Listing on Endangered Species List.** If the Gopher Tortoise is federally listed under the Endangered Species Act and such listing materially limits, prohibits, or prevents the further relocation of Gopher Tortoises from Donor Site(s) to Recipient Site(s), either Party may terminate this Agreement with thirty (30) days’ written notice, without liability or penalty.

In the event of a termination of this Agreement under this Paragraph 13.b., Post Oak shall refund, without invoice and within ninety (90) days after the Termination Date, to Buyer, an amount equal to 50% of the amount of capacity remaining under this Agreement multiplied by the Per GT Rate.

If the Agreement is terminated, pursuant to the terms contained in this Paragraph 13.b., Buyer will work diligently and in good faith with FWC and Post Oak to remove any encumbrance or regulatory requirements on lands owned by Post Oak caused by the Reservation Letter or Buyer’s permit(s).

14. LAWS AND REGULATIONS. Neither Party shall violate any laws, ordinances, rules, regulations or permit conditions of the United States or the State of Florida or any governing body or any rule, regulation or order of any governmental agency, including but not limited to the U.S. Corps of Engineers, the United States Environmental Protection Agency, the Florida Department of Environmental Protection, any Florida Water Management District, the FWC or any other agency applicable to the operations or activities under this Agreement. If either Party acts or fails to act under this Agreement in a manner which is contrary to any said laws, ordinances, rules, regulations, or permit conditions, then that Party shall assume full responsibility therefor and shall bear all costs attributable thereto.

15. SUCCESSORS; ASSIGNMENT. This Agreement, in whole or in part, may not be assigned or transferred by Buyer to a third-party without the prior written consent of Post Oak. This consent shall not be unreasonably withheld. The foregoing to the contrary notwithstanding, either Party shall have the right to assign this Agreement without the consent of the other Party in the event of a sale or exchange of all, or substantially all, of the assigning Party’s real estate associated with this Agreement. Subject to the provisions contained herein, this Agreement will be binding upon, inure to the benefit of and be enforceable by the Parties and their respective

successors. Any purported assignment made in contravention of this Paragraph shall be null and void.

Upon an approved assignment or transfer of this Agreement by Post Oak, the Parties shall work together in good faith to transfer all permits necessary to be transferred in conjunction with any assignment or transfer of this Agreement. Assignment or transfer of this Agreement by either Party shall be subject to the respective successor or permitted assign first obtaining the appropriate FWC approvals and permits, if any.

16. NO THIRD-PARTY BENEFICIARIES. This Agreement does not create any right or interest in any member of the public as a third-party beneficiary, nor shall it authorize anyone not a Party to this Agreement to maintain suit for performance, personal injuries, or damages pursuant to any provision of this Agreement.

17. RELATIONSHIP OF THE PARTIES; NO TENANCY CREATED. Except as contemplated in this Agreement, this Agreement shall not create, nor shall be represented by either Party hereto to create, a partnership, joint-venture, employer-employee, master-servant, principal- agent, or other relationship whatsoever between the Parties hereto. Nothing in this Agreement whatsoever shall be construed to create a tenancy or vest title in the property of either Party to the other Party or any third-party. The terms of this Paragraph shall survive the Expiration Date or Termination Date, whichever should occur first.

18. RESPONSIBILITY FOR AGENTS. Neither Party shall be responsible for the acts and omissions of the other Party's employees, agents, subcontractors, their agents and employees, and all other persons acting through, or under, the respective Party, pursuant to the terms of this Agreement. The terms of this Paragraph shall survive the Expiration Date or Termination Date, whichever should occur first.

19. APPLICABLE LAW; VENUE. This Agreement shall be governed by and construed under and in accordance with the laws of the State of Florida, without regard to its conflicts of law provisions. The Parties agree that all disputes and matters whatsoever arising under, in connection with or incidental to this Agreement shall be litigated, if at all, in Pasco County, Florida. The Parties expressly waive the right to a jury trial, if any.

20. ATTORNEY'S FEES. If any Party hereto commences any action against the other Party hereto with respect to the enforcement or interpretation of this Agreement, then the prevailing Party in such action shall be entitled to an award of its costs of litigation, including attorney's fees, paralegal fees, expert fees, court and other costs, whether incurred before or during litigation, on appeal, in bankruptcy, or in post judgment collections.

21. ENTIRE AGREEMENT; WAIVERS; AMENDMENTS OR MODIFICATIONS. This Agreement constitutes the entire agreement of the Parties hereto and supersedes all prior and contemporaneous agreements, representations, and understandings of the Parties. No waiver of the provisions of this Agreement shall be deemed or shall constitute a waiver of any of the other provisions, nor shall any waiver constitute a continuing waiver. This Agreement may not be supplemented, altered, modified or amended, or otherwise changed except by an instrument in

writing signed by authorized representatives of both Parties. The course of dealing or course of performance between the Parties shall not commit either Party to duties or obligations which are not expressly stated by this Agreement.

22. NOTICES. Any notice, request, demand, instruction, or other communication required or permitted to be sent by either Party to the other Party under or in connection with this Agreement shall be in writing, shall be sent or delivered to the address of the other Party set forth below, and shall be deemed to have been delivered upon the earlier to occur of (i) actual receipt, if delivered by hand or by commercial courier, (ii) actual receipt, if sent by fax, e-mail or other generally recognized electronic means, (iii) one business day after mailing by any form of overnight mail service, or (iv) the date upon which the return receipt is signed or delivery is refused, or the notice is designated by postal authorities as not deliverable, as the case may be, when mailed by registered or certified mail, return receipt requested. Notice so delivered after normal business hours of the recipient or on a Saturday, Sunday, or any public or legal holiday, shall be deemed to have been received on the next succeeding regular business day. Either Party may change the address for notices to it, effective as of any date not less than ten (10) days following delivery of the change of address notice, by giving the other Party hereto notice of such change of address in the manner specified in this Paragraph. For the purposes of this Agreement, the notice addresses of the Parties named herein are as follows:

Post Oak:
Post Oak Partners, LLC
Attention: Van Pittman
1700 S. MacDill Ave., Suite 340
Tampa, Florida 33629
Phone: 813-390-1044

Buyer:

Attention:

Phone:

With a copy to:
Post Oak Agent: Applied
Bionomics, LLC
Attention: Andrew Fuddy
3113 W. Fielder Street
Tampa, FL 33611

23. CAPTIONS. The captions for the various provisions of this Agreement have been provided for convenience of reference only and shall not be used in interpreting any such provision.

24. DRAFTING. It is understood that this Agreement was negotiated and prepared by the Parties and counsel for the Parties as a combined effort designed to meet their clients' desires and needs. This Agreement shall be interpreted without regard to any presumption or rule requiring interpretation against the drafter or the party causing this Agreement, or any part or provision thereof, or any exhibit thereto, or any instrument or judgment thereunder, to be drafted, prepared, or revised.

25. DATES. Should any date described in this Agreement requiring performance under this Agreement fall on a Saturday, Sunday, or a day that has been recognized as a public or legal holiday, said performance shall be required on the next succeeding regular business day.

26. COUNTERPARTS. This Agreement may be executed in counterparts, each of which may be an original, but all of which together shall constitute one and the same agreement. Any counterpart may be delivered by facsimile transmission or by electronic communication in portable document format (.pdf) and the Parties agree that their electronically transmitted signatures shall have the same effect as manually transmitted signatures.

27. ASSURANCES BY BUYER. Buyer represents and warrants to Post Oak that, as of the Effective Date: (a) Buyer is authorized to do business and is in good standing in the state of Florida; (b) Buyer has full power and authority to enter into this Agreement and to comply with the terms of this Agreement; (c) this Agreement constitutes the legal, valid and binding obligation of Buyer enforceable against Buyer in accordance with its terms, subject only to applicable bankruptcy or insolvency laws; (d) all requisite action has been taken to make this Agreement valid and binding on Buyer in accordance with its terms; (e) the person signing this Agreement on behalf of Buyer is fully authorized to do so; (f) there is no agreement, order, judgment, claim, litigation or proceeding pending or threatened against Buyer that would require consent for, or could interfere with, Buyer's performance of this Agreement; (g) there is no attachment, execution or assignment by or against Buyer for the benefit of creditors; and (h) there is no receivership, or voluntary or involuntary proceeding in bankruptcy or pursuant to any other debtor relief laws contemplated or pending by or against Buyer. All of Buyer's warranties and representations in this Agreement, all of which are relied upon by Post Oak, shall survive the Expiration Date or Termination Date of this Agreement, whichever should occur first.

28. ASSURANCES BY Post Oak. Post Oak represents and warrants to Buyer that, as of the Effective Date: (a) Post Oak is a limited liability company duly organized and in good standing under the laws of Florida; (b) Post Oak has full power and authority to enter into this Agreement and to comply with the terms of this Agreement; (c) this Agreement constitutes the legal, valid and binding obligation of Post Oak, enforceable against Post Oak in accordance with its terms, subject only to applicable bankruptcy or insolvency laws; (d) all requisite action has been taken to make this Agreement valid and binding on Post Oak in accordance with its terms; (e) the person signing this Agreement on behalf of Post Oak is fully authorized to do so; (f) there is no agreement, order, judgment, claim, litigation or proceeding pending or threatened against Post Oak that would require consent for, or could interfere with, Post Oaks' performance of this Agreement; (g) there is no attachment, execution or assignment by or against Post Oak for the benefit of creditors; and (h) there is no receivership, or voluntary or involuntary proceeding in bankruptcy or pursuant to any other debtor relief laws contemplated or pending by or against Post Oak. All of Post Oaks' warranties and representations in this Agreement, all of which are relied upon by Buyer, shall survive the Expiration Date or Termination Date of this Agreement, whichever should occur first.

[The remainder of this page is blank. Signatures on next page.]

IN WITNESS WHEREOF, the Parties herein have caused this Gopher Tortoise Relocation Agreement to be executed as of the day and year first above written.

***Signed, Sealed and Delivered
in the presence of:***

Post Oak Partners, LLC
a Florida limited liability company

X

Witness 1 Signature
Printed Name: _____

By: _____
Name: Andrew V. Pittman, Jr.
Its: Manager

X

Witness 2 Signature
Printed Name: _____

Witness 1 Signature
Printed Name:

By: _____

Printed Name: _____

Its: _____

Witness 2 Signature
Printed Name:

Exhibit “A”

Reservation letter will be supplied after execution by Post Oak and clearance of Initial Payment

Exhibit “B”

Gopher Tortoise Delivery and Acceptance Protocol

I. Delivery to Post Oak:

- A. Buyer shall follow all FWC Gopher Tortoise Permitting Guidelines (July 2020, or most current version) while transporting tortoises to Post Oak.
- B. Buyer agrees to provide Post Oak with a signed copy of the relocation permit prior to initial delivery of gopher tortoises. Buyer (or agent of the Buyer also agrees to provide Post Oak with a copy of the completion report. This information is necessary for our reporting requirements with the Florida Fish and Wildlife Conservation Commission. Failure to do so can result in the denial of any future requests for use of the recipient site.
- C. Buyer and Post Oak will communicate, not less than 24 hours prior to desired delivery time, and coordinate to ensure the availability of Post Oak’s authorized agent to accept Buyer’s Gopher Tortoise(s) at the Post Oak Recipient Site or to a mutually agreeable location. Buyer and Post Oak shall, to the extent practical, try and arrange delivery times between the hours of 8:00 am and 3:00 pm Monday through Friday. Buyer and Post Oak agree that deliveries outside those hours will only be allowed based on mutually agreed on times.
- D. For cold weather handling, Buyer and Post Oak shall coordinate delivery dates at least 48 hours prior to scheduled delivery to ensure there are 3 consecutive days where the overnight low temperature is above 50° Fahrenheit as forecasted by the National Weather Service at the Post Oak Recipient Site.
- E. Post Oak will provide Gopher Tortoise recipient identification number, biological data (i.e., sex, size, health, and age) within two business days of receiving final Payment for the remaining balance invoiced for the Gopher Tortoise(s) accepted by Post Oak from Buyer.

II. Reporting and Data Documentation:

- A. Both Post Oak and Buyer shall maintain valid Authorized Agent permits issued by the FWC as required by the FWC Gopher Tortoise Permitting Guidelines and be appropriately authorized to perform the tasks required of them with regard to the capture and release of Gopher Tortoises.
- B. Upon delivery of the Gopher Tortoise(s) to Post Oak, Buyer’s agent/consultant shall sign Post Oak’s chain of custody to document the number of Gopher Tortoise(s) received from Buyer.

III. Cursory Health Evaluation:

- A. Prior to delivery of the Gopher Tortoise(s) to Post Oak, Buyer shall perform a cursory health evaluation as described in Appendix 6 of the July 2020 Gopher Tortoise Permitting Guidelines for each adult Gopher Tortoise from Buyer's Donor Site(s).
- B. Before delivery to Post Oak, Buyer shall determine if excavated Gopher Tortoise(s) from Buyer's Donor Sites exhibit any of the long-term indicative signs of poor health described in the July 2020 Gopher Tortoise Permitting Guidelines. Symptomatic Gopher Tortoise(s) should not be delivered to Post Oak and will not be accepted Post Oak until the Buyer provides proof of health from a registered veterinarian. Buyer will be responsible for seeking health assessment from a veterinarian.
- C. Buyer shall report to Post Oak the general health condition of each Gopher Tortoise(s) prior to, or at the time of delivery.

IV. Delivery of Eggs

- A. If eggs are encountered at Buyer donor sites, they shall be placed in individual containers. Buyer and Post Oak will follow the procedures for handling and relocating Gopher Tortoise eggs as detailed in the July 2020 Gopher Tortoise Permitting Guidelines